

IN THE UNITED STATES COURT OF APPEALS
FOR THE ELEVENTH CIRCUIT

No. 20-12897-GG

DEEPGULF, INC.,
TOKE OIL AND GAS SA,

Plaintiffs-Counter Defendants-Appellants,

versus

MARC M. MOSZKOWSKI,

Defendant-Counter Claimant-Appellee.

Appeal from the United States District Court
for the Northern District of Florida

Before: WILSON and ROSENBAUM, Circuit Judges.

BY THE COURT:

Upon review of the parties' responses to our jurisdictional question, we REMAND this case to the district court for the limited purpose of determining whether it had subject matter jurisdiction in the first instance. *See Rolling Greens MHP, L.P. v. Comcast SCH Holdings L.L.C.*, 374 F.3d 1020, 1022 (11th Cir. 2004). The record reflects that citizens of foreign states are on both sides of the action below, without the presence of citizens of a state on both sides. *See* 28 U.S.C. § 1332(a)(2); *Iraola & Cia, S.A. v. Kimberly-Clark Corp.*, 232 F.3d 854, 860 (11th Cir. 2000). In response to our jurisdictional question, the parties appear to argue that they are not diverse. However, Marc M. Moszkowski, proceeding *pro se* on appeal, appears to repeat his argument—which he originally raised in his notice of removal, but which does not appear to have

been addressed—that Toke Oil and Gas, S.A.’s citizenship should be disregarded for purposes of determining whether diversity jurisdiction existed based on fraudulent joinder. *See Henderson v. Wash. Nat’l Ins. Co.*, 454 F.3d 1278, 1281 (11th Cir. 2006); *Stillwell v. Allstate Ins. Co.*, 663 F.3d 1329, 1332 (11th Cir. 2011).

We believe that the district court should have the first opportunity to determine whether it had subject matter jurisdiction, and we accordingly remand this case to the district court for the limited purpose of making that determination. *See Pacheco de Perez v. AT & T Co.*, 139 F.3d 1368, 1372 n.5 (11th Cir. 1998). Once the district court makes its determination as to subject matter jurisdiction, it should provide this Court with a copy of its decision. Because the relief the Appellants seek in their response to our jurisdictional question is premised on the district court’s jurisdictional finding, we DENY their motion without prejudice to renewal after the district court has made its determination on limited remand.